

of such measures is not feasible.

2. The responsible party must demonstrate that the processing activities comply with the principles of data protection as outlined in the GDPR, particularly the principles of legality, fairness, and transparency.

3. In this case, the responsible party has indicated that the processing activities mandated by the COVID-19 Vaccination Obligation Act (COVID-19-IG) are necessary for compliance with legal obligations. However, the responsible party's own data protection impact assessment indicates that the processing activities pose a high risk to the rights and freedoms of data subjects, which has not been mitigated by appropriate measures.

4. The responsible party has not provided sufficient evidence to demonstrate that the processing activities can be conducted in accordance with the GDPR. The concerns raised regarding the proportionality and necessity of the COVID-19 vaccination obligation have not been adequately addressed.

5. Therefore, the Data Protection Authority concludes that the processing activities as proposed by the responsible party cannot be carried out in compliance with the GDPR, and the request for prior consultation is rejected.

D. Conclusion

Based on the above findings, the Data Protection Authority concludes that the processing activities proposed by the responsible party under the COVID-19-IG cannot be conducted in accordance with the GDPR due to the high risks involved and the lack of adequate measures to mitigate those risks.

The decision is made in accordance with Article 35, 36, and 58 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR).

This decision is final and can be appealed in accordance with the applicable legal provisions.

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available technology and the necessary implementation costs cannot be classified as justifiable expenses (cf. Jandt, op. cit., para. 5).

2. The concerns raised by the controller primarily relate to the legal basis for the intended data processing in accordance with Art. 6 para. 1 lit. c GDPR and Art. 9 para. 2 lit. i GDPR regarding their feared unconstitutionality or violation of Union law. The controller argues that the COVID-19 vaccination mandate is not proportionate, which leads to the conclusion that the data processing provided for by law is also not proportionate and therefore unlawful.

However, the alleged unconstitutionality or violation of Union law of a statute - here: the COVID-19 Act - cannot be the subject of a consultation procedure under Art. 36 GDPR. This is particularly in light of the fact that a controller cannot influence a data processing operation that is legally mandated and cannot effectively mitigate any residual risks.

The powers of a supervisory authority under Art. 36 para. 2 in conjunction with Art. 58 GDPR aim to enable actual influence on data processing.

However, the competence to decide on the unconstitutionality of a statute does not lie with the supervisory authority, but solely with the Constitutional Court in accordance with Art. 140 B-VG. The question of the compatibility of national legal provisions with Union law is, according to Art. 267 TFEU, solely the responsibility of the CJEU.

The Data Protection Authority is neither authorized under Art. 140 B-VG nor under Art. 267 TFEU to call upon the Constitutional or European Court to examine the alleged unlawfulness raised by the controller as a preliminary question in accordance with § 38 AVG.

3. Finally – and detached from the present proceedings – reference is made to a request for a preliminary ruling addressed to the CJEU by the Administrative Court of Wiesbaden (decision of January 13, 2022, case no. 6 K 1563/21.WI) (recorded there as C-61/22):

The Administrative Court asks whether the failure to conduct a mandatory data protection impact assessment under Art. 35 para. 10 GDPR can leave the validity of a norm unaffected, or whether, on

the contrary, the mandatory obligation of the legislator to carry out a risk impact assessment must lead to the invalidity of the norm if it is not conducted. Otherwise, the legislator would be rewarded for its misconduct (see particularly para. 69 of the referral decision).

4. The conditions for prior consultation under Art. 36 GDPR are therefore not met, and a decision was made accordingly.